

COMMITTEE AMENDMENT
HOUSE OF REPRESENTATIVES
State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB1319 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Chris Sneed

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED SUBCOMMITTEE
SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1319

By: Frix of the Senate

and

Sneed of the House

PROPOSED SUBCOMMITTEE SUBSTITUTE

[Corporation Commission - Revolving Fund -
expenditure - assistance - rules - codification -
emergency]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

A. The Corporation Commission shall establish a process to
alleviate new and ongoing serious environmental emergencies through
which a homeowner whose residence has become contaminated by a
substance within the Corporation Commission's jurisdiction,
including, but not limited to, brine or oil, may apply for
remediation assistance.

1 B. 1. To request the use of funds from the Remediation
2 Assistance Revolving Fund created in Section 2 of this act, the
3 homeowner shall file an application to be considered by the
4 Corporation Commission. The Corporation Commission may hear the
5 application with or without notice.

6 2. After considering the evidence presented, the Corporation
7 Commission shall rule on the application and determine the amount of
8 remediation assistance necessary to remediate and abate the
9 environmental emergency.

10 3. The amount of remediation assistance may include the cost to
11 stop the substance from continuing the contamination, the cost of
12 removing and cleaning up the substance, and the cost of purchasing
13 the residence and property at fair market value. The Remediation
14 Assistance Revolving Fund shall not be used to pay for any damages.

15 4. Prior to any expenditure from the Remediation Assistance
16 Revolving Fund, the Corporation Commission shall comply with the
17 requirements set forth in Section 85.41A of Title 74 of the Oklahoma
18 Statutes.

19 5. If the Corporation Commission or other agency identified in
20 subsection C of this section determines that purchasing the
21 homeowner's property is the best course of action, title to the
22 property shall be acquired and held by the city or county in which
23 the property is located. The city or county shall determine the
24 fair market value of the property. If removal of the residence is

1 necessary, the city or county shall facilitate removal of the
2 residence. Once the residence is removed and the presence of a well
3 is confirmed, the Corporation Commission shall remediate and abate
4 the environmental emergency. After the property is remediated, the
5 city or county shall sell the property and return all proceeds to
6 the Remediation Assistance Revolving Fund.

7 6. A homeowner's insurance claim shall not be required prior to
8 receiving remediation assistance provided pursuant to this
9 subsection. However, the homeowner shall in good faith pursue all
10 available homeowner's insurance claims and damage claims. All
11 proceeds received by the homeowner not related to damaged personal
12 property shall be reimbursed to the Remediation Assistance Revolving
13 Fund.

14 C. If, at any time, the environmental emergency is determined
15 by the Corporation Commission to not be within the Corporation
16 Commission's jurisdiction, or it is determined to be a naturally
17 occurring breakout, the matter shall be referred to the Department
18 of Environmental Quality and the Oklahoma Energy Resources Board to
19 remediate and abate the environmental emergency only if sufficient
20 funds exist in the Remediation Assistance Revolving Fund to perform
21 the remediation work or abatement.

22 D. The Corporation Commission shall promulgate rules to
23 effectuate the provisions of this section.
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1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
3 is created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Corporation Commission to be designated the "Remediation
6 Assistance Revolving Fund". The fund shall be a continuing fund,
7 not subject to fiscal year limitations, and shall consist of all
8 monies received by the Corporation Commission from any public or
9 private donations, contributions, and gifts received for the benefit
10 of the fund and any amounts appropriated by the Legislature
11 designated for deposit in the fund. All monies accruing to the
12 credit of the fund are hereby appropriated and may be budgeted and
13 expended by the Corporation Commission or the Department of
14 Environmental Quality for the purpose of providing remediation
15 assistance as provided for in Section 1 of this act. Expenditures
16 from the fund shall be made upon warrants issued by the State
17 Treasurer against claims filed as prescribed by law with the
18 Director of the Office of Management and Enterprise Services for
19 approval and payment.

20 SECTION 3. It being immediately necessary for the preservation
21 of the public peace, health or safety, an emergency is hereby
22 declared to exist,
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1 by reason whereof this act shall take effect and be in full force
2 from and after its passage and approval.

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